

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Crl. Revision No.38 of 2021

Muhammad Shahid Yousaf

vs

The State and others

Sr. No.	Date of order	Order with signature of Judge, and that of parties or counsel, where necessary.
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- 02) 01.02.2021 Sheikh Jamshed Hayat, Advocate for the petitioner.
Mr. Ansar Yaseen, Deputy Prosecutor General, on Court's call.

Through instant revision petition filed under Section: 435 Cr.P.C. read with Section: 439 Cr.P.C., Muhammad Shahid Yousaf (petitioner/ accused) has challenged the *vires* of order dated: 19.01.2021 passed by learned Special Judge, Anti-Corruption, Multan, whereby costs of Rs.10,000/- was imposed upon present petitioner and *vires* of order dated: 26.01.2021 passed by said learned Court, whereby right of cross-examination of the accused/petitioner over PW-1 to PW-5, was closed; relevant portion of impugned order dated: 19.01.2021 is hereby reproduced: -

“On first call in the morning before 11:00 am learned counsel for the accused Shahid Yousaf request for keeping the case pending and time was fixed as 12:30 pm but at 12:30 pm learned counsel for the accused did not appear and accused requests for keeping the case pending till 01:30 pm learned counsel for the accused has not put up appearance now it is 02:00 pm now Mr. Maqbool Ahmad Advocate has put up appearance on behalf of learned counsel for the accused and request for an adjournment, which is vehemently opposed from the other side. This is a direction case, however in the interest of justice subject to payment of cost of Rs.10,000/- by the accused Shahid Yousaf to the complainant. Last opportunity is given to the accused to get cross examine the PWs. PWs Muhammad Amjad, Fahad, Iqbal, Allah Ditta and Hafiz Ashfaq present in the court are bound down for 26.01.2021.”

Similarly, relevant portion of impugned order dated: 26.01.2021 is also reproduced for ready reference: -

“PWs Muhammad Amjad PW-2, Fahad PW-3, Iqbal PW-4, Allah Ditta PW-5 and Hafiz Ashfaq PW-1 are present. Today, last opportunity was given to the accused persons to cross examine the above said PWs subject to payment of cost of Rs.10,000/- but accused persons have neither paid the cost nor their learned counsel has turned up. Therefore, the right of cross examination of the accused on PW-1 to PW-5 is hereby closed.”

2. Brief facts leading to instant criminal revision are that petitioner is an accused in case arising out of F.I.R. No.02/2019 dated: 08.01.2019 registered: under Sections: 420, 467, 468, 109 PPC read with Section: 5(2) of the Prevention of Corruption Act, 1947 at Police Station: A.C.E., District: Khanewal; he filed petition for grant of post-arrest bail before august Supreme

Court of Pakistan through Criminal Petition No.737-L of 2020, which was allowed *vide* order dated: 04.08.2020, however, direction was issued for conclusion of trial of the accused (petitioner) by the end of year 2020; relevant Paragraph No.5 of said order is hereby reproduced: -

“5. Petitioner/appellant shall not leave the country without the permission of the learned trial court. Since charge has already been framed, therefore, the learned trial court seized of the matter is directed to expedite the proceedings of trial and ensure its conclusion positively by the end of this year (2020). It is made clear that if the appellant misuses the concession of bail or any delay in the conclusion of trial is caused by him or anyone else acting on his behalf, the learned trial court shall be competent to recall the bail granting order. Of course, after hearing the parties, strictly in accordance with law.”

Learned trial court, during trial of the case, when observed that cross-examination over PWs is not being made, then imposed costs *vide* order dated: 19.01.2021 (mentioned above) and thereafter when cross-examination was not made on 26.01.2021, closed right of cross-examination over PW-1 to PW-5 (mentioned above).

3. Learned counsel for the petitioner submits that both impugned orders (mentioned above) are against the facts of the case and relevant law on the subject; also adds that next date of hearing before learned trial court is fixed for tomorrow i.e. 02.02.2021; finally prays for setting-aside both aforementioned impugned orders while providing an opportunity of right of cross-examination to the petitioner/accused over PW-1 to PW-5.

4. Learned Deputy Prosecutor General while opposing aforementioned contentions raised by learned counsel for the petitioner, has supported both impugned orders (mentioned above).

5. **Arguments heard. Available record perused.**

6. Now a days, getting frequent adjournments by the concerned parties, during trial of the case, has become very common, which causes unnecessary delay in conclusion of the trial and is alarming, therefore, same invites immediate attention and requires proper measures because it is settled principle of law that “justice delayed is justice denied”; provision dealing with adjournment of criminal trial is Section: 344 Cr.P.C. and relevant portion of the same is hereby reproduced: -

“344. Power to postpone or adjourn proceedings.- - (1) If, from the absence of a witness, or any other reasonable cause, it becomes necessary or advisable to postpone the commencement of or adjourn any inquiry or trial, the Court may, if it thinks fit, by order in writing, stating the reasons therefor from time to time, postpone or adjourn the same **on such terms as it thinks fit, for such time as it considers reasonable**, and may by a warrant remand the accused if in custody:
(emphasis added)

It is well settled that at the time of interpreting a provision of law, approach is to be kept as dynamic, purposive and meaningful, while also keeping in view prevailing circumstances, need of the time, challenges being faced and to be faced in future and of course “safe administration of justice”, therefore, words “on such terms (mentioned above)” used in Section: 344 Cr.P.C. is not without any significance and can be safely interpreted as including power/authority to impose costs while granting adjournment and such power may be considered as inherent in the Court for safe administration of justice, otherwise, aforementioned words would become redundant; it goes without saying that such interpretation will enhance the cause of justice, minimize unnecessary adjournment and save the system of administration of justice. Hence, impugned order dated: 19.01.2021 *qua* imposing costs of Rs.10,000/- in the case is justified in peculiar facts and circumstances of the case, however, said amount is hereby reduced from Rs.10,000/- to Rs.5000/-.

As far as order dated: 26.01.2021 *qua* closing right of cross-examination of the accused/petitioner over PW-1 to PW-5, is concerned, suffice it to say that when on 26.01.2021, accused did not produce counsel for cross-examining the witnesses, then it was appropriate for learned trial court to ask accused persons for cross-examining the witnesses themselves and in case of refusal by accused persons, to cross-examine the witnesses itself instead of closing right of cross-examining the witnesses, therefore, for safe administration of justice, one opportunity is granted to the accused persons for cross-examining the PW-1 to PW-5 themselves or through their learned counsel on the next date of hearing before learned trial court, otherwise, on said date, learned trial court shall cross-examine said PWs itself and further proceed with the trial of the case in accordance with law. With these observations, instant revision petition stands disposed of.

7. Deputy Registrar (Judicial) of this Bench shall convey order of this Court to the learned trial court through fax, immediately.

(Farooq Haider)
Judge

APPROVED FOR REPORTING

(Farooq Haider)
Judge